

		civil litigant [citation], it does not provide for protection against civil penalties. “[W]hile the privilege of a criminal defendant is absolute, in a civil case a witness or party may be required either to waive the privilege or accept the civil consequences of silence if he or she does exercise it.”” (citations omitted). <i>Case management and efficient use of judicial resources</i> “[C]onvenience of the courts is best served when motions to stay proceedings are discouraged.” <i>Avant!</i>, 79 Cal.App.4th at 888. In this case, however, the plaintiff does not oppose a stay of the action. For case management purposes, and to utilize judicial resources most efficiently, any stay to be imposed should apply to all parties. In addition to the potential prejudice to Stroj addressed above, proceeding piecemeal risks, <i>inter alia</i>, duplication of effort and discovery, revisiting of issues and inconsistent rulings. <i>Interests of nonparties and public interest in pending civil and criminal litigation</i> No showing has been made that either of these factors materially bears on whether to stay the civil action. The court thus does not find that either of these factors compels a different outcome for these motions. This case is stayed pending resolution of <i>People v. Fish, et al.</i>, OCSC Case No. 24CF1948, or other order of the court. All pending dates, including motion hearing dates, the pretrial conference and the trial date are vacated, subject to being reset as necessary upon entry of an order lifting the stay. Defendant Martin Brill to give notice. <u>Status Conference</u> The court has reviewed the parties’ joint status conference statement filed December 6, 2024 (ROA 666). In a concurrently-issued order, the court granted defendants Martin Brill, American Patriot Brands, Inc., Robert Mayer, Robert Y. Lee, Brian L. Pallas, Jim Anderson, Urban Pharms, LLC, DJ & S Property #1, LLC, TSL Distribution, LLC and Legion Accounting Services, Inc.’s motions to stay this action pending resolution of <i>People v. Fish, et al.</i>, OCSC Case No. 24CF1948, or other order of the court. A status conference is scheduled for <u>June 26, 2025 at 9:00 a.m.</u> in Department CX104. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
11	Clark, et al. v. Windsail Capital Group, LLC, et al. 2021-01191735	<u>Plaintiff Growthpoint Global, Inc.’s Motions to Compel (1) Further Responses to Special Interrogatories (Set Four) Nos. 75-80 from Windsail Credit Fund, L.P., Windsail Capital Fund L.P., Windsail Capital Fund, LLC and Windsail GP, LLC, (2)</u>

		<u>Further Response to Request for Production No. 91 from Crate Modular, Inc. and (3) Further Responses to Special Interrogatories (Set Two) Nos. 36-41 from Crate Modular, Inc. (together, the "Group 1 Motions")</u> Plaintiff Growthpoint Global, Inc. moves to compel defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC and Windsail GP, LLC (together, the "Windsail Entities") to provide further responses to Special Interrogatories (Set Four) Nos. 75-80. Growthpoint also moves to compel defendant Crate Modular, Inc. to provide a further response to Request for Production No. 91 and further responses to Special Interrogatories (Set Two) Nos. 36-41. For the following reasons, the motions are granted in part and denied in part. In the absence of a contrary court order, a civil litigant's right to discovery is broad. <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 551. "For discovery purposes, information is relevant if it "might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement" [Citation.] Admissibility is not the test and information unless privileged, is discoverable if it might reasonably lead to admissible evidence.'" <i>Garamendi v. Golden Eagle Ins. Co.</i> (2004) 116 Cal.App.4th 694, 712 n.8. Growthpoint's motion to compel the Windsail Entities to provide further responses to Special Interrogatory Nos. 75-80 is denied as moot, as the Windsail Entities (ROA 2375 at 9:18-10:7) and Growthpoint (ROA 2409 at 5:3-4) state that the Windsail Entities have agreed to provide the requested discovery. Growthpoint's motion to compel Crate to provide a further response to Request for Production No. 91 (Crate's general ledger for 2018-2023) is denied. As stated in the court's February 8, 2024 order (ROA 1857) addressing Growthpoint's motion to compel, <i>inter alia</i>, production of Crate's bank statements: "Defendants have submitted evidence they have produced Crate's balance sheet as of October 8, 2018, Crate's annual financial statements for 2018 through 2022, Crate's annual profit and loss, balance sheets and cash flow statements for 2022, Crate's monthly and quarterly actuals for 2018 through 2022, Crate's monthly profit and loss, balance sheets and cash flow statements for 2019 and 2020, and Crate's monthly actuals and profit and loss for 2022. Crate has presented evidence it has produced its tax returns for 2018 through 2022, as well as other financial records containing budget information, weekly forecasts, weekly updates, weekly, weekly dashboards, pipeline projections, cash flows and case forecasts, financial models, and project profit and loss reports. Crate presented evidence it has produced completed project lists containing, among other information, the contract price.
--	--	---

		"Plaintiff does not dispute that Crate has produced these documents. Plaintiff contends all of these records are fraudulent, and are 'sanitized reports' prepared by defendants' accountants using 'accounting tricks.' Plaintiff provides no evidence substantiating these assertions. Without any supporting evidence, plaintiff has not shown good cause to require Crate to provide further responses to Request No. 3 and Special Interrogatory No. 23." 2/8/24 Order (ROA 1857) at 2-3. Here again, Growthpoint does not dispute that Crate has produced these documents. Growthpoint instead contends Crate's financial statements "appear flawed in many regards," and that Growthpoint requires Crate's general ledgers "to better understand the previous financial information produced by Crate and to get a more accurate depiction of Crate's financial condition." Reply (ROA 2409) at 7:16-19. Growthpoint's evidence in support of these contentions is a declaration from its counsel containing numerous statements about Crate's financial documents for which counsel provides no foundation (e.g., Vu Decl. (ROA 1978) ¶¶ 12, 13, 21) and an expert report. Counsel's foundationless statements do not show good cause to require Crate to provide a further response to Request for Production No. 91. As to the expert report, the three pages Growthpoint cites (Reply (ROA 2409) at 8:22) also do not show good cause to require Crate to provide a further response to Request for Production No. 91, as the expert states only that Crate's general ledgers "would assist" with reviewing Crate's balance sheets and income statements, both of which the expert has. A general statement that additional documents "would assist" in reviewing the extensive financial documents Crate already has produced is insufficient to order Crate to produce further financial documents. Growthpoint's motion to compel Crate to provide further responses to Special Interrogatories Nos. 36, 37 and 39 is granted. As to Special Interrogatories Nos. 36, 37 and 39, Crate shall provide a further verified response stating whether it still owns each asset identified in response to Special Interrogatory No. 34 and, if it does not, state how (or to whom, if applicable) it disposed of the asset and, if applicable, the amount of money Crate received for the sale or other disposition of the asset. Growthpoint has not shown good cause to compel Crate to perform a valuation analysis, and Growthpoint's motion to compel Crate to provide a further response to Special Interrogatory No. 38 is accordingly denied. Crate shall provide further verified responses to Special Interrogatories (Set Two) Nos. 36, 37 and 39 by January 3, 2025. Growthpoint's motion to compel Crate to provide further responses to Special Interrogatories Nos. 40 and 41 is denied. Crate contends its PMK witness Paul Neitzel testified at his deposition as to Crate's understanding of the terms "gross
--	--	---

		pipeline” and “prob. adj. pipeline.” In the cited portions of Neitzel’s deposition (Silva Decl. (ROA 2391) Ex. 2 (at 131:10-25, 189:8-190:3)), Neitzel testifies about Crate’s definition of “pipeline,” which is neither of the terms addressed in Special Interrogatories Nos. 40 and 41, and, regarding the term “pipeline” in a specific document, testified he did not know how “pipeline” was defined in that document. The motion to compel Crate to provide further responses to Special Interrogatories Nos. 40 and 41 is nevertheless denied because, to the extent Growthpoint seeks to compel Crate to explain the meaning of the terms “gross pipeline” and “prob. adj. pipeline” used in “board minutes, pipeline reports, semi-monthly updates, and/or weekly updates” (Growthpoint Separate Statement (ROA 1922) Nos. 40 & 41), the interrogatories are overbroad and vague as Growthpoint has not identified in its motion the documents (or even the number of documents) containing these terms. To the extent Growthpoint seeks to compel Crate to explain the meaning of the terms “gross pipeline” and “prob. adj. pipeline” used in the five documents identified in the Welch Declaration (ROA 1977 ¶ 17 & Exs. 9-13), those questions are more appropriately posed to the authors of the documents. Growthpoint has not shown good cause to compel Crate to provide further responses to Special Interrogatories Nos. 40 and 41. Growthpoint’s requests for sanctions are denied. Plaintiff Growthpoint Global, Inc. to give notice. <u>Plaintiff Growthpoint Global, Inc.’s Motions to Compel (1) Responses to Requests for Production (Set Five) Nos. 70-77 from Windsail Capital Group, LLC, (2) Responses to Requests for Production (Set Five) Nos. 70-77 from Windsail GP, LLC, (3) Responses to Requests for Production (Set Five) Nos. 70-77 from Windsail Credit Fund, L.P., (4) Responses to Requests for Production (Set Five) Nos. 70-77 from Windsail Capital Fund, L.P., (5) Responses to Special Interrogatories (Set Three) Nos. 36-41, 43-60 and 63-73 from Windsail Capital Group, LLC, (6) Responses to Special Interrogatories (Set Three) Nos. 36-41, 43-60 and 63-73 from Windsail GP, LLC, (7) Responses to Special Interrogatories (Set Three) Nos. 36-41, 43-61 and 64-74 from Windsail Credit Fund, L.P., (8) Responses to Special Interrogatories (Set Three) Nos. 36-41, 43-61 and 64-74 from Windsail Capital Fund, L.P. and (9) Further Deposition of Michael Rand as Person Most Qualified for Windsail Entities (together, the “Group 2 Motions”)</u> Tentative rulings will not be posted on the Group 2 Motions.
--	--	--